

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents

COMPLAINANT’S MOTION FOR SANCTIONS

Complainant Samsung Electronics America, Inc. (“SEA”), by its undersigned counsel, respectfully moves, pursuant to 46 C.F.R. § 502.150(b)(3), for an order sanctioning Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”) for its egregious and serial dilatory behavior, including its ongoing failure to comply with its discovery obligations in this matter and its most recent failure to produce declarations fully compliant with the Commission’s February 20, 2026 Order (Doc. No. 120), causing extreme, undue delay in this proceeding and to the adjudication of SEA’s claims.

I. INTRODUCTION

OOCL’s conduct throughout this proceeding has seriously and consistently fallen short of its obligations under the Federal Maritime Commission’s rules. Among other misconduct, OOCL has so consistently misrepresented its discovery efforts that the Presiding Officer was ultimately compelled to issue an explicit Order requiring OOCL to produce declarations under oath attesting

to its discovery process and providing a direct answer to one of the central issues in this matter. However, OOCL failed to produce to SEA the full measure of the expressly ordered information in the materials it provided on March 13, 2026, and failed to answer the direct questions asked. SEA attempted to resolve the matter directly with OOCL, however OOCL refused to supplement its Declarations. OOCL's conduct evidences its ongoing dilatory intent to delay this proceeding.

The declarations OOCL provided demonstrate how significantly OOCL has failed to comply with its discovery responsibilities, and how seriously OOCL misrepresented its production and discovery responses. The declarations provided merely cursory information, in part blaming an alleged, unspecified corrupted search index "anomaly" in its document production process (Carruth Decl. at 15). After previously certifying to the Presiding Officer multiple times that its initial production of 43,175 pages produced by September 26, 2025 satisfied its discovery obligations in full¹, OOCL provided its declarations and then dumped an additional 540,000 pages of documents on April 2 and 11, 2026. That demonstrates that its earlier representations were mere shams.

Moreover, the declarations further indicate that OOCL's most recent dump of over half a million pages may be largely nonresponsive fluff rather than responsive to SEA's discovery requests. The declaration provided by Mr. Murdoch, who is neither an officer nor an apparently authorized representative of either Respondent, indicates that OOCL's searches were not tethered to SEA's requests for production at all, but were based on vague instructions to OOCL employees to unilaterally collect documents from custodians, notably none of whom were employees of Respondents. OOCL has still not produced a single document from either named Respondent, and

¹ See, e.g., Doc. 91 at 2.

has instead produced documents only from its U.S. agent, OOCL (USA) Inc., or other related entities.

The Presiding Officer has previously noted OOCL's litigation misconduct, not only in connection with discovery, but also in the serving of frivolous counterclaims, third-party complaints, and appeals, leading to the February 20, 2026 Order in the tribunal's most recent attempt to compel OOCL to meet its obligations. Unfortunately, OOCL is clearly not deterred from continuing its abuses.

SEA has been severely prejudiced by OOCL's continued delay in producing the full extent of discovery, and it remains unclear if or when OOCL will satisfy its discovery obligations.² SEA has been forced to incur substantial costs dealing with OOCL's misconduct and delays. This tribunal has also been significantly burdened by OOCL's ongoing misconduct.

Accordingly, it is not enough to merely order OOCL once again to fully comply with its obligations, including the February 20, 2026 Order. A further extension for OOCL would only inflict greater prejudice on SEA. Accordingly, SEA respectfully requests that OOCL be sanctioned for its continued flouting of the rules and a default judgment be awarded against OOCL.

II. BACKGROUND

A. OOCL's Prior Litigation Misconduct.

Despite its repeated representations, including in the December 1, 2025 Joint Status Report (Doc. No. 99) to the Presiding Officer that it had completed discovery by the end of September 2025, the OOCL declarations show those assertions were knowingly false, noting further

² Mr. Carruth's declaration discloses that a data "anomaly" (a corrupted search index) caused keyword searches to return incomplete results across OOCL's prior productions. Mr. Carruth states that CoDiscover identified this anomaly after analyzing two custodians, and states that additional responsive non-privileged documents will be produced but does not provide any expected timeline for such a production. Carruth Decl. ¶¶ 15 & 17.

productions on December 2, 2025, December 5, 2025, December 22, 2025, December 30, 2025, January 9, 2026, and February 19, 2026 (Carruth Decl. at ¶ 12).

OOCL's further litigation misconduct involving frivolous claims for a dilatory purpose was noted in the Presiding Officer's Orders of November 26, 2025 (Doc. 98 at fn 10, noting OOCL's expressly stated intent to cause further delays) and March 20, 2026 (Doc. 126, at 14, 15, and fn 4, noting concerns about OOCL's conduct in discovery).

B. The February 20, 2026 Order

On February 20, 2026, the Presiding Officer issued an Order requiring OOCL to provide sworn declarations describing: (1) the process by which OOCL performed document searches in response to SEA's discovery requests, including the date ranges, custodians or systems searched, and search terms used; (2) the identity of all potentially relevant custodians or systems searched during the January 1, 2020 to December 31, 2022 timeframe; and (3) the process by which OOCL charged demurrage, detention, and other fees during that same period. That Order was issued after the Presiding Officer found that OOCL's representations of production completeness was not accurate and that its searches and productions had been deficient. (Doc. No. 120 at 2.).

On March 13, 2026, OOCL served three declarations purporting to satisfy the February 20 Order: one from Mr. Kenneth Carruth, Assistant Director of CoDiscover (OOCL's e-discovery vendor); one from Mr. Gavin Murdoch, Vice President of Risk and Compliance at OOCL (USA) Inc.; and one from Ms. Tracy Sha, Director of Documentation and Invoicing at OOCL (USA) Inc. Those declarations fail to satisfy the February 20 Order in multiple material respects.

C. Independent Resolution Efforts and Meet & Confer Certification

SEA notified OOCL of the deficiencies in its declarations by letter of March 31, 2026 and requested supplemental declarations by April 7. OOCL did not respond. SEA then reached out by

email on April 8 to arrange a time to discuss the matter. The parties discussed the declaration deficiencies on April 14 and OOCL stated its refusal to supplement its declarations. SEA wrote OOCL on April 15 to document the matter and warn that SEA intended to file a Motion to Compel. OOCL responded on April 17 by letter claiming to have fully complied with its obligations and the February 20, 2026 Order. On April 24th, SEA further advised OOCL that upon review of the relief sought, its Motion to Compel would be more appropriately styled as a Motion for Sanctions. Accordingly, the parties have conferred in good faith but have been unable to resolve the matter.

III. ARGUMENT

OOCL's refusal to comply with its discovery obligations is a continuation of a pattern of misconduct that the Presiding Officer has already identified, made clear that he finds troubling, and on which he has placed OOCL on notice. See Doc. Nos. 120 at 2 and 126 at n.4. In spite of the Presiding Officer's clear directions, OOCL's three declarations served on March 13, 2026 do not satisfy the February 20, 2026 Order. OOCL thus continues to flout the Commission's rules and the Order of the Presiding Officer. Its failure to perform its discovery obligations has significantly prejudiced SEA, increased the costs of litigation, burdened this tribunal, and delayed this matter. OOCL should be found to have caused undue delay and acted in bad faith, and should be sanctioned as permitted by the Shipping Act and the Commission's regulations.

A. OOCL's Process to Identify Relevant Systems, Custodians, and Documents

The February 20, 2026 Order directed OOCL to describe "the process by which it performed document searches in response to SEA's discovery requests, including the date ranges used, the custodians or systems searched, and search terms used." This information is necessary to test OOCL's representations that it properly searched for and completed its production of documents. While OOCL identified custodians searched and date ranges for specific items, it *did* *not* identify the full scope of search terms used or the process by which it formulated its search

terms in response to SEA's discovery requests. It also failed to explain or describe how OOCL identified which custodians and/or data repositories were determined to be likely to have responsive information, or how documents were collected.

Notably, the declarations do not identify a single person employed by either Respondent as a custodian or as having responsive information. Even though OOCL identified correspondence from Respondents regarding the service contracts in its Initial Disclosures as documents which Respondents may use to support its defense in this matter, and SEA specifically requested such correspondence in its Request for Production Numbers 1, 4, 5, and 16, OOCL has failed to produce any such correspondence. Such gaps underscore the failures of OOCL to meet its discovery obligations.

OOCL does not explain or describe the process by which it performed document collection in response to SEA's Discovery Requests. The Murdoch Declaration merely states at ¶ 8 that "I instructed OOCL employees to perform the following collections of information." It offers no explanation of how such collections were determined, the systems searched, the relevant filters, or the search terms used to identify and collect the enumerated information.

Although SEA had identified in its earlier Motion to Compel several missing documents, OOCL only now concedes that numerous email inboxes not previously identified are in fact likely to have responsive information. But OOCL does not explain why they were not identified, or how certain employees were identified but not others; instead only listing certain systems and employees of OOCL (USA)'s North American Customer Service, Demurrage and Detention department as having been searched. This is in direct contravention of the Presiding Officer's Order requiring OOCL to produce a sworn declaration which would include: "b) identification of *all* other potentially relevant custodians or systems, *including* all persons in, and systems used by,

OOCL's North American Customer Service, Demurrage and Detention during the January 1, 2020-December 31, 2022, timeframe" (emphasis added). This omission, together with the lack of a description of OOCL's search process and how responsiveness determinations were made, confirms that OOCL has still failed to carry out a faithful, comprehensive production of documents.

OOCL discloses that it delegated the task of determining the location of potentially responsive documents to certain employees,³ but does not disclose how those persons were qualified to do so or instructed to make determinations. For example, despite being identified as a location for demurrage and detention dispute communications, OOCL does not identify NAGDD@oocl.com and NADISPDD@oocl.com as having been searched at all for responsive documents.

Underlying the above specific concerns; the note in the Carruth declaration of a "anomaly" resulting in a corrupted search index raises many more questions than it answers.⁴ OOCL provides no details on how the anomaly was overlooked until responding to the February 20 Order, the extent that the anomaly compromised prior productions or its impact on further productions.⁵

Ultimately, the OOCL declarations confirmed what SEA has been noting and attempting to resolve for months – that OOCL has failed to produce documents it should have produced from the outset, and its limited previous production is unreliable, evidencing its willfully lackadaisical approach to its discovery obligations. But even in the face of such revelations, OOCL still willfully

³ Murdoch Declaration, ¶ 7

⁴ Mr. Carruth's declaration discloses that a data "anomaly" (a corrupted search index) caused keyword searches to return incomplete results across OOCL's prior productions. Mr. Carruth states that CoDiscover identified this anomaly after analyzing two custodians, and states that additional responsive non-privileged documents will be produced but does not provide any expected timeline for such a production. Carruth Declaration, ¶¶ 15 & 17.

⁵ Carruth Declaration, ¶ 17.

fails to provide the information ordered by the Presiding officer to ensure OOCL has complied with its discovery obligations.

Most conspicuously missing from OOCL's Declarations is the search terms and/or filters used in its document collection process, as well as its document production searches. Outside of the singular search term, "Samsung", OOCL does not state what other search terms were used in the collection of documents and data. Presumably OOCL may have utilized other search terms or filtering of documents, but OOCL failed to identify those terms, defying the February 20th Order.

B. OOCL's Demurrage and Detention process regarding SEA

The February 20, 2026 Order commanded OOCL to provide a sworn declaration describing: "c) the process by which OOCL charged demurrage, detention and other fees during the January 1, 2020-December 31, 2022, timeframe." While Ms. Sha's declaration outlines the general process by which OOCL charged detention and demurrage, the February 20th Order clearly required OOCL to specify the process by which it charged SEA demurrage, detention, and other fees during the 2020-2022 timeframe on the containers at issue. Ms. Sha's declaration does not answer that question. Only OOCL has information regarding the manner in which it assessed detention and demurrage on SEA and the relevant shipments, particularly relevant in the context of Service Contracts, store door deliveries, and customer nominated trucking. While OOCL was ordered to provide that information on February 20, 2026, it was also requested to provide that specific information on numerous times and in numerous ways by SEA in its Interrogatories Nos. 1, 3, 10, 12, 16, & 17. However, OOCL has willfully failed to provide the ordered information.

C. The Declarations were not provided by or on behalf of Respondents

Finally, the February 20 Order directs that *Respondents*, i.e., Orient Overseas Container Line Limited and OOCL (Europe) Limited, were to produce the sworn declarations. However, none of the declarants are officers of either Respondent, and neither the declarants nor the

Respondents have provided any evidence of authorization to make declarations, answer discovery or make other legal representations on behalf of either Respondent in accordance with Rule 6 of the Commission's Rules of Practice and Procedure (46 C.F.R. § 502.6)⁶.

OOCL has steadfastly refused to provide any evidence of such authorization; in its most recent letter referring to such a requirement as "nonsensical." But without the required verification, SEA has no way to the responses and declarations are in fact those of Respondents.

IV. REQUEST FOR DEFAULT JUDGEMENT

The Shipping Act provides that if the Commission finds that its issuance of a final decision is subject to undue delay caused by a party to the proceeding, "the Commission may issue sanctions, including issuing a decision adverse to the delaying party." 46 U.S.C. § 41302. The Commission's Rules expressly provide that a Presiding Officer may order a default judgement against a disobedient party for failure to comply with discovery orders. 46 CFR § 502.150(b)(3). An order of default is appropriate when a litigant's misconduct is accompanied by "willfulness, bad faith, or fault." *MSC Mediterranean Shipping Co. S.A. v. Fed. Mar. Comm'n*, 141 F.4th 222, 241 (D.C. Cir. 2025) (internal citations omitted). A reviewing court determining whether default is appropriate considers three factors:

(1) the prejudice to the other party, which must present its case without the ordered discovery; (2) the burden on the tribunal, which must spend its resources addressing delays caused by noncompliance with its orders; and (3) the need to deter bad faith conduct in the future. Any one of these factors, alone, may justify a default judgment, but the judgment "must be based on findings supported by the record."

Id., citing to *Webb v. D.C.*, 146 F.3d 964, 971-75 (D.C. Cir. 1998).

⁶ Rule 6 of the Commission's Rules of Practice and Procedure, which addresses the verification of documents, provides that documents are to be signed and verified under oath or statement by the party or by a duly authorized officer or agent of the party, whose address and title shall be stated. 46 CFR § 502.6. In the context of discovery, Rule 145(b)(1)(iii) specifically provides that in the case of a public or private corporation, interrogatories must be answered "by any officer or representative." 46 CFR § 502.145.

In this case, the delay to the proceedings resulting from OOCL's serial misconduct and misrepresentations, the corresponding prejudice to SEA and the burden on the Commission, are well-documented in the docket of this proceeding. As a very large controlled-carrier, OOCL has tremendous inherent market power. In this proceeding, it has willfully delayed an adjudication of its unreasonable demurrage charges – assessed against a consignee on the basis of its own delays in effecting store-door deliveries – through frivolous counterclaims and third-party claims, and by repeated discovery misconduct and its repeated misrepresentations.

Despite multiple opportunities extended to OOCL by the Presiding Officer with admonitions, OOCL continues to disregard its responsibilities, imposing additional delays and burdens on SEA and this tribunal. As shown by OOCL's failure to comply faithfully with the February 20 Order, OOCL remains undeterred. At this point, default is the appropriate remedy in response to deter not only OOCL, but also "other parties to other lawsuits" who might be tempted to follow OOCL's example in disregarding discovery obligations. *Nat'l Hockey League v. Metro. Hockey Club*, 427 U.S. 639, 643 (1976) (holding dismissal is appropriate by reason of "respondents' flagrant bad faith and their counsel's callous disregard of their responsibilities"; internal quotes omitted).

V. CONCLUSION

For the foregoing reasons, SEA respectfully requests that the ALJ grant this Motion and enter an Order finding that OOCL has violated the February 20, 2026 Order by submitting declarations that fail to satisfy its express requirements and granting default judgment against OOCL, or in the alternative, compelling OOCL to supplement its declarations with verifications and complete its document production as required by the Commission's Rules, and awarding sanctions and such further relief as the Presiding Officer finds appropriate.

Dated: April 24, 2026

Respectfully Submitted,

MILLS BLACK LLP

By: /s/ Peter F. Black

Peter F. Black
H. Allen Black
Imran O. Shaukat
Kate Fitzgerald
1215 19th Street, NW
Washington, DC 20036
pblack@millsblack.com
hablack@millsblack.com
ishaukat@millsblack.com
kfitzgerald@millsblack.com

*Counsel to Samsung
Electronics America, Inc.*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Counsel for Respondents and Third-Party Complainants
 - a. Rebecca A. Fenneman (RFenneman@JeffreyFenneman.com)
 - b. Kaya C. Massey (KMassey@JeffreyFenneman.com)
 - c. Nicholas L. Webb (NWebb@JeffreyFenneman.com)
4. COZEN O'CONNOR
Counsel for Respondents and Third-Party Complainants
 - a. Wayne R. Rohde (wrohde@cozen.com)
 - b. Christopher Raleigh (craleigh@cozen.com)
 - c. Rachel Schwartz (rschwartz@cozen.com)
 - d. Kathryn Sobotta (ksobotta@cozen.com)

Dated: April 24, 2026

By: /s/ Peter F. Black

Peter F. Black
MILLS BLACK LLP

*Counsel to Samsung
Electronics America, Inc.*